



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing two judgments on Tuesday 12 September 2017 and seven judgments and / or decisions on Thursday 14 September 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 12 September 2017

[Rõigas v. Estonia \(application no. 49045/13\)](#)

The applicant, Anneli Rõigas, is an Estonian national who was born in 1963 and lives in Tallinn. The case essentially concerns her complaint of a lack of investigation into her son's alleged maltreatment in hospital and into the circumstances of his death.

Ms Rõigas' son, O., born in 1983, was diagnosed with malignant melanoma in 2006. In that year, he underwent surgery and regular check-ups. In April 2009 he had more surgery, in which a metastasis was removed from his brain, and he received radiation therapy. Following a deterioration of his health, he was admitted to hospital again in September 2009. After computerised tomography (CT) and magnetic resonance imaging scans of his brain had been performed, a hospital medical council decided to proceed with palliative care. It found that, because O.'s tumour had spread, oncological treatment would not be effective. For one week, in October 2009, O. was physically restrained to a bed, apparently in order to prevent him from hurting himself, because he was in a disturbed state of mind. When he was additionally suffering from progressive respiratory failure, he was transferred to an intensive care unit, where, on 12 October, he stopped breathing and mechanical ventilation was applied. On the next day, the characteristics corresponding to brain death were ascertained. O. died on 15 October 2009. An autopsy was performed on the following day. The medical death certificate indicated cerebral oedema as the immediate cause of death and melanoma with multiple metastases as the medical condition that had brought it about.

According to Ms Rõigas, O. did not sign the medical council's decisions not to provide him with oncological treatment and to proceed with palliative care. She also maintains, in particular, that O. fell into a coma following an overdose of medicine, that the protocol for verifying brain death was not properly carried out by the hospital and that the administration of food and medicines was not resumed, despite her requests.

Following O.'s death, Ms Rõigas complained to the police about his treatment in the hospital and requested an expert examination. After she had additionally complained to the Health Board, the case was transmitted to the Expert Committee on the Quality of Health Care Services, which, after examining O.'s medical records, obtaining explanations from the hospital staff and obtaining expert opinions, found no medical malpractice. Ms Rõigas' action to have the Expert Committee's report declared unlawful was dismissed by a final judgment of the Supreme Court in December 2015. In parallel, following an offence report lodged by her, criminal proceedings were initiated. They were eventually terminated in October 2012 as on the basis of the gathered evidence the commission of an offence had not been proven.

Relying on Article 2 (right to life), Article 3 (prohibition of inhuman or degrading treatment) and Article 8 (right to respect for private and family life) of the European Convention on Human Rights, Ms Rõigas complains of a lack of investigation into her son's maltreatment in hospital and into the

circumstances of his death, and maintains that various medicines were administered without O.'s or her consent.

[Karataş and Others v. Turkey \(no. 46820/09\)](#)

The applicants are ten Turkish nationals who live in Tunceli (Turkey). The case concerns an armed incident in south-eastern Turkey in September 2007. The applicants complain that soldiers killed their relative Bülent Karataş and severely injured one of the applicants, Rıza Çiçek, in the same incident; they maintain that the authorities failed to conduct an effective investigation into the events.

In the late morning of 27 September 2007, near the village of Yenibaş in south-eastern Turkey, Bülent Karataş and Rıza Çiçek, who were unarmed, were hit by several bullets fired by soldiers of a military unit based in the town of Hozat. In the afternoon of the same day, they were taken by gendarmes to the military hospital in Elazığ. Bülent Karataş died on the way to the hospital, where a post mortem examination was carried out. The doctors noted that three bullets had entered his body and that he had died from the loss of blood as a result of the wounds. They also noted a number of abrasions and a broken rib.

The Hozat public prosecutor opened an investigation on the day after the incident, after having declined to visit the scene of the incident on 27 September 2007, due to security concerns, and having instead instructed the gendarmes to secure any objects found in the area.

Six military personnel who had taken part in the operation were questioned by the public prosecutor in early October 2007; they stated that their unit had been in the area to look for members of terrorist organisations who, according to intelligence, had been transporting food supplies and equipment to their hiding places. When the soldiers came across the two men on 27 September 2007, they had asked them to stop, but the men had disobeyed and had started running down a hill. The soldiers had fired in the air and repeated their warning. When, at that moment, fire was opened in their direction from a river bed, they had returned fire.

According to the statements from Rıza Çiçek, who was questioned as a “suspect” by the prosecutor on 6 November 2007, he and his cousin Bülent Karataş, who was a bee-keeper, had gone to the area in question on 27 September 2007 to collect a bee colony. Their identity was checked by a group of soldiers, who then told them to leave as they were in a “terrorist area”. Bülent told the soldiers that they would finish their job and then leave. About 20 minutes later the soldiers returned; they first told them to lie on the ground and then to get up and run away. When Rıza Çiçek did so, several rounds of shots were fired in his direction and he was hit in his chest and arm.

In December 2008 the Elazığ military prosecutor, to whom the file had in the meantime been forwarded, decided to close the investigation and not to bring criminal proceedings against the soldiers. He considered that the version of the events put forward by the military personnel was true and noted in particular that, although Bülent Karataş and Rıza Çiçek had been unarmed, there was a strong suspicion that the two men had been in the area to assist terrorists.

Rıza Çiçek and two other applicants filed an objection against the military prosecutor's decision, maintaining that the two men had intentionally been shot by the soldiers and arguing that there had not been a thorough investigation either by the Hozat public prosecutor or by the military prosecutor, who had never actually questioned Rıza Çiçek, who was both a victim and witness. The applicants' objection was rejected by the Malatya Military Court in March 2009.

In the meantime, Rıza Çiçek had been placed in detention on remand and charged with aiding and abetting a terrorist organisation. The trial court declined however to open proceedings and, in May 2008, ordered his release.

The applicants complain of a violation of Article 2 (right to life) of the Convention in respect of Bülent Karataş and Rıza Çiçek.

Thursday 14 September 2017

[Matevosyan v. Armenia \(no. 52316/09\)](#)

The applicant, Alik Matevosyan, is an Armenian national who was born in 1987 and was serving his sentence in Nubarashen penal facility when he lodged his application with the Court. The case concerns his complaint that there was no effective investigation into his allegations of ill-treatment by military police officers.

In May 2006, Mr Matevosyan, who was performing his military service at the time, was questioned by the police during a criminal investigation into the death of a fellow serviceman, A.H., whose body had been found in the forest next to Mr Matevosyan's military unit. According to the case file, Mr Matevosyan was questioned on 2 May 2006 in the town of Kapan. Subsequently, he and another serviceman, R.H., were taken to the Military Police Department of the Ministry of Defence in Yerevan, where they were held until 12 May 2006. R.H. confessed that he and Mr Matevosyan had murdered A.H. On 17 May an investigator drew up a record of the arrest, stating that Mr Matevosyan had been arrested on that day on suspicion of beating up and murdering A.H. A defence lawyer was assigned to him the next day. On 20 May 2006 he was charged with aggravated breach of military discipline and aggravated murder.

Mr Matevosyan contests the facts as reflected in the documents of the case file. He maintains that he was taken to the Kapan Military Police Department on 1 May and was held there until 3 May 2006. Subsequently he was taken to a disciplinary isolation facility of the Military Police Department, where he was held until 20 May 2006. During this period, in the absence of a lawyer, he was subjected to torture by military police officers, with the aim of forcing him to confess to the murder. In particular, he was repeatedly brutally beaten, held in an isolation cell and threatened that "bad things" would happen to his girlfriend and his sister.

While in pre-trial detention, in June 2006, Mr Matevosyan lodged a complaint with the General Prosecutor about having been ill-treated by the military police. After having questioned several officers of the military police, the investigator decided, in September 2006, not to institute criminal proceedings, concluding that there was no evidence of a crime. Mr Matevosyan only learned about that decision later, when consulting the case file.

In August 2007 Mr Matevosyan was convicted of non-aggravated murder and of breaching military rules, and sentenced to nine and a half years' imprisonment. R.H. was also convicted and sentenced to a prison term. Mr Matevosyan appealed, maintaining his innocence. In December 2007 the Court of Appeal upheld the judgment. In July 2008 the Court of Cassation granted an appeal on points of law by the Military Prosecutor's Office, seeking a re-evaluation of the offences. The case was remitted to the Court of Appeal, which, in November 2008, changed the first offence to aggravated murder and increased Mr Matevosyan's sentence to 15 years' imprisonment. Subsequent appeals on points of law, lodged by his lawyer and by himself – maintaining that he had been beaten and tortured by military police officers, and that R.H. had been forced to make confession statements – were dismissed.

Relying on Article 3 (prohibition of torture and of inhuman or degrading treatment), Mr Matevosyan complains that the authorities failed to conduct an effective investigation into his allegations of ill-treatment by military police officers while in custody.

[Bozza v. Italy \(no. 17739/09\)](#)

The applicant, Ermelinda Bozza, is an Italian national who was born in 1949 and lives in Torre del Greco (Italy). The case concerns Ms Bozza's complaints concerning the dismissal, as being out of time, of a claim for just satisfaction lodged under the "Pinto Act" and about the length of the proceedings.

In January 1990, a few years after having made the relevant application, Ms Bozza's mother was granted an entitlement to a monthly payment of a disability pension, accompanied by a special allowance awarded on the basis of her partial blindness. In October 1994 Ms Bozza's mother applied for a recalculation of her pension and interest on the arrears. Her application was dismissed as out of time in March 1998.

In March 1999, following her mother's death, Ms Bozza lodged an appeal against that decision, on her own behalf and in her capacity as heir. On 10 December 2002 the Naples Court held that Ms Bozza was entitled to the recalculated sum requested and to interest, amounting to 12,240.26 euros (EUR). That decision became final on 25 January 2004, but it was not executed by the relevant authorities. On 14 June 2004 Ms Bozza served a payment order on the National Social Security Agency. On 25 January 2005 she obtained an attachment order for the entirety of her claim from the Naples enforcement judge.

In May 2005 Ms Bozza lodged an appeal with the Rome Court of Appeal, complaining about the excessive length of the proceedings. With regard to the admissibility of her appeal, she argued that, under the "Pinto Act" of 2001, the "final domestic decision" to be taken into account was that of the enforcement judge of 25 January 2005. In consequence, she argued, the six-month deadline for lodging the claim for just satisfaction ought to run from that date. On May 2006 the court of appeal declared Ms Bozza's appeal inadmissible, considering that the final domestic decision to be taken into consideration was that delivered by the Naples Court on 10 December 2002, which had become final on 25 January 2004. The Court of Cassation upheld that decision in September 2008.

Relying on Article 6 § 1 (right to a fair hearing) of the Convention, Ms Bozza complains of the excessive length of the civil proceedings to which she was a party and of the fact that her claim for compensation was dismissed as being out of time.

[Ndidi v. the United Kingdom \(no. 41215/14\)](#)

The applicant, Ifeanyi Chukwu Ndidi, is a Nigerian national who was born in 1987 and lives in London. The case concerns his complaint that his deportation from the United Kingdom would constitute a disproportionate interference with his right to respect for his family and private life.

Mr Ndidi entered the United Kingdom with his mother in 1989 and was granted indefinite leave to remain in the country in 2003. In 1999, aged 12, he received police cautions for assault and robbery. On four occasions in 2003 and 2004 he was convicted of a number of offences, including robbery, assault and burglary. On the latest of these occasions, in November 2004, he was sentenced to three years' detention in an institution for young offenders. In 2006 the Secretary of State for the Home Department warned him that should he offend again in the future, he could be liable to deportation. In 2008 Mr Ndidi pleaded guilty to the supply of Class A drugs. In March 2009, he was sentenced to seven years' imprisonment, which was later substituted by the appeal court with a sentence of seven years' detention in an institution for young offenders.

When he was released in March 2011 he was served with a decision stating that he was liable to automatic deportation and that removal would not breach his rights under either the Refugee Convention or the European Convention on Human Rights. His appeal against the decision was initially allowed, but that decision was later set aside and his appeal was dismissed by the Upper Tribunal in April 2012. The Tribunal considered that, in spite of his long residence and his family ties in the UK, serious reasons existed to justify his expulsion. In particular, he had a long history of offending; he had received a fair warning, but despite his assurances that he was turning his life around he had continued to be engaged in drug dealing and his criminal behaviour had escalated; and whilst serving his most recent sentence, he had received 16 adjudications, the majority of them for violence and disobedience. As to the risk to the public, the Tribunal found it difficult to accept his assurances that he was changing his life, given that he had made similar assurances in the past. Furthermore, he was of an age where he could be expected to cope with the challenge of starting a

new life in Nigeria, where he had a number of relatives. The courts refused Mr Ndidi permission to appeal.

In November 2012 Mr Ndidi submitted further representations to the Secretary of State based on his relationship with a British national, who had no connection to Nigeria, and the birth of their son in October 2012. However, the Secretary of State refused to revoke the deportation order. In a new decision of April 2013 she confirmed that decision, after having considered Mr Ndidi's arguments in light of the new Immigration Rules. Following an amendment of 9 July 2012, the Rules provided, in particular, that the deportation of foreign criminals would be conducive to the public good if they were sentenced to four or more years' imprisonment and that in such cases the public interest would only be outweighed in "exceptional circumstances".

The First-tier Tribunal then dismissed Mr Ndidi's appeal in September 2013. It concluded, firstly, that his relationship with a British national and the birth of their child did not amount to "exceptional circumstances" within the meaning of the Immigration Rules. Secondly, it found that the legitimate interest in maintaining appropriate immigration control was not outweighed by Mr Ndidi's rights under Article 8 of the European Convention on Human Rights. Notably, he had failed to disclose his immigration status to his partner until after she was pregnant; he and his partner had never lived together; his partner and child had the full support of her family in the United Kingdom, which would continue following Mr Ndidi's deportation; and his child could visit him in Nigeria so as to maintain the family relationship. The courts refused Mr Ndidi permission to appeal in December 2013.

Mr Ndidi maintains that the requirements of the amended Immigration Rules are not compatible with Article 8 (right to respect for private and family life) of the Convention and complains that his deportation would constitute a disproportionate interference with his rights under Article 8. He further relies on Article 14 (prohibition of discrimination) read together with Article 8.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Kazlauskas v. Lithuania (no. 13394/13)

Kužmarskienė v. Lithuania (no. 54467/12)

Ćalović v. Montenegro (no. 18667/11)

Saygılı v. Turkey (no. 42914/16)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.